

INTA Practice Guides Report

Trademark Cancellations Guide

Cyprus

SINGLE JURISDICTION REPORT

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I. Availability — A. Availability

- Cancellation of a trademark is available for: national marks; international marks; European Union Trade Marks.
- "Cancellation" is defined by legislation as follows: As per the definition provided in the relevant part of the Trade Marks Law (Cap. 268, as amended), "invalidity" means the cancellation of the trademark and its removal from the Cyprus Registry for the reason that the registration occurred in violation of one or more absolute or relative grounds of rejection.
- Cancellation actions can be filed online at the following URL: <https://www.intellectualproperty.gov.cy/en/21-eservices/efiling-services/e-filing-services>

II. Grounds — A. Absolute Grounds

- The following absolute grounds may be raised in cancellation proceedings: the mark is descriptive; the mark is misleading and/or deceptive; the mark lacks distinctiveness; the mark is generic; the mark consists of a geographical indication; the mark is functional; the mark is against public policy or principles of morality; the mark has not been authorized by competent authorities pursuant to Article 6ter of the Paris Convention; the mark includes a badge or emblem of particular public interest; the mark is used in a misleading and/or deceptive manner; the mark is prohibited in this jurisdiction; the application for or registration of the mark was made in bad faith.

II. Grounds — B. Relative Grounds

- The following relative grounds may be raised in cancellation proceedings: there is an earlier application or registered mark; there are earlier use-based rights in an unregistered mark; the application for or registration of the mark was made in bad faith; the mark is covered by a copyright; the mark is a company name; the mark is notorious or well known (Article 6bis of the Paris Convention); the trademark application was filed or the registration was granted in the name of an agent or other person with a business connection to the owner of the mark (Article 6septies of the Paris Convention); the mark is a trade or business name; the mark is a domain name.

II. Grounds — C. Grounds Other Than Absolute, Relative or Non-Use

- Other than the absolute or relative grounds listed above and/or the non-use grounds listed below, there are no other grounds that may be raised in cancellation proceedings.

II. Grounds — D. Non-Use Grounds

- Non-use may be raised as a ground in cancellation proceedings, as prescribed by

Section 39 of the Trade Marks Law (Cap. 268, as amended).

- In relation to cancellation for non-use, "use" is defined as: Under Cyprus law, "use" includes use of the trademark in a form that does not alter the inherent distinctiveness of the trademark from the form in which it has been registered. According to the case law of the European Court of Justice (Ansul BV v. Ajax Brandbeveiliging BV, Case C-40/01 (ECJ Mar. 11, 2003), paras. 35–39), "use" must be genuine, genuine referring to "actual use" of the mark. Genuine use must therefore be understood to denote use that is not merely token, serving solely to preserve the rights conferred by the mark. Such use must be consistent with the essential function of a trademark, i.e., indicating the origin of the goods or services covered. It follows that "genuine use" entails use of the mark on the market for the goods or services protected by that mark and not just internal use by the undertaking concerned. Use of the mark must also relate to goods or services already marketed or about to be marketed and for which preparations by the undertaking to secure customers are underway, particularly in the form of advertising campaigns. Use may be either by the trademark proprietor or by a third party with authority to use the mark. Finally, when assessing whether there has been genuine use of the trademark, regard must be had to all the facts and circumstances relevant to establishing whether the commercial exploitation of the mark is real.

- The definition of "use" provided above is derived both from statute, regulation or administrative rule and from case law: Use is defined by Section 16 of the Trade Marks Law (Cap. 268, as amended). No relevant case law is available in Cyprus. Relevant guidance as to the interpretation of "use" is also provided by the judgment of the European Court of Justice in Ansul BV v. Ajax Brandbeveiliging BV (Case C-40/01 (ECJ Mar. 11, 2003)).

- Use by a licensee or with the consent of the proprietor constitutes use by the proprietor.

- The time frame within which a mark must be used in order to avoid cancellation runs from: the date of registration.

- Counting from the above date, to avoid cancellation for non-use, the mark must be used within: five years.

- The consequences of use being interrupted are: A period of non-use of less than five years causes no consequences. Section 39 of the Trade Marks Law (Cap. 268) provides that a registered trademark is subject to cancellation from the Cyprus Registry if, for a continuous period of five years, the owner of the trademark does not make substantial use of the trademark for the goods and services for which it has been registered and no reasonable excuse exists for such non-use.

II. Grounds — E. Multiple Grounds

- An application for cancellation may be based on multiple grounds (i.e., on a combination of absolute, relative and non-use grounds).

- The advantages of filing an action based on multiple grounds are as follows: If one of the grounds is rejected, the others can still be relied upon.

- If an action is based on multiple grounds and the action could be disposed of on one ground, the other grounds will nevertheless be considered.

II. Grounds — F. International Registrations and European Union Trade Marks

- Grounds for cancellation are the same in respect of international marks as they are for national marks.

- Grounds for cancellation are the same in respect of European Union Trade Marks as

they are for national marks. The grounds are the same except for a ground specific to European Union Trade Marks; that is, the trademark contains or consists of a geographical indication or a designation of origin registered in accordance with Regulation (EEC) No. 2081/92.

II. Grounds — G. Introduced Later in Proceedings

- Additional grounds for cancellation may not be introduced at a later stage in the proceedings.

III. Forum — A. Forum

- The forum for cancellation proceedings is the same regardless of the grounds on which the proceedings are brought. Cancellation proceedings on all grounds may be brought before the following court or other judicial tribunal: Eparxiako Dikastirio (District Court). Cancellation proceedings on all grounds may be brought before the following administrative body: Eforos Eterion kai Episimos Paralipsis (Registrar of Companies and Official Receiver).
- The administrative body/bodies listed above is/are not independent of the trademark registry.

IV. Standing — A. On Basis of Grounds

- The following parties have legal standing to apply for cancellation, regardless of the grounds for cancellation: any interested person. Legal interest is required.

IV. Standing — B. Person/"Interested Person" Defined

- For purposes of standing, a "person" is defined as: both natural and juridical persons.
- For purposes of standing, an "interested person" is defined as: someone who believes he is being damaged by the registration; someone who has filed an earlier pending application to register a conflicting trademark; someone who owns an earlier conflicting trademark registration; someone who owns earlier rights in a copyright or design that conflicts with the mark that is the subject of the trademark application; someone who owns rights in a conflicting trademark that were acquired through use; someone who is a licensee of any conflicting trademark or other intellectual property right; someone who owns a company name that conflicts with the mark that is the subject of the trademark application; someone who is of the opinion that the mark was not registrable.

IV. Standing — C. Domestic/Foreign Applicant

- The legal standing criteria for domestic and foreign applicants are the same, regardless of the grounds for cancellation.

IV. Standing — D. Multiple Applicants

- More than one applicant may apply jointly for cancellation based on: absolute grounds; relative grounds; non-use grounds.

IV. Standing — E. Infringement Defendant as Applicant

- In a court action for trademark infringement, cancellation of the plaintiff's trademark registration may be sought by a defendant.

V. Representation — A. Qualifications

- The applicant is always required to appoint a representative (attorney, agent or other legal representative) in cancellation proceedings. The representative must always be an attorney registered in Cyprus, under the provisions of the Advocates Law (Cap. 2, as amended). By law, agents and other legal representatives are prohibited from acting as representatives of an applicant or litigant.
- The representative must be domestic, i.e., with an office in the jurisdiction.
- Additional professional qualifications required of a representative in cancellation proceedings are as follows: The attorney must have a license from the Council of Legal Education, be registered with the Cyprus Bar Association, and renew the license each year.

V. Representation — B. Power of Attorney-- Notarization/Legalization Requirements

- A signed power of attorney need not be provided to a representative by an applicant in cancellation proceedings.
- There are no notarization/legalization requirements for a power of attorney form in cancellation proceedings.

VI. Commencement — A. Timing

- Cancellation proceedings that are independent of opposition proceedings may never be commenced before a mark is registered.

VI. Commencement — B. Deadline

- The deadline for bringing cancellation proceedings varies, depending on the grounds for cancellation. For proceedings based on absolute grounds, the deadline is: five years from the date of registration, unless the registration was obtained by fraud, or it consists of a scandalous design, or it offends public order or morality. For proceedings based on relative grounds, the deadline is: five years, unless the registration was obtained by fraud. For proceedings based on non-use grounds, the deadline is: none.

VI. Commencement — C. Statute of Limitations

- The statute of limitations or acquiescence provisions that will prevent cancellation vary, depending on the grounds for cancellation. For proceedings brought on relative grounds, the statute of limitations or acquiescence provision is: Acquiescence is regulated by Section 14 of the Trade Marks Law (Cap. 268, as amended), which provides that consent to the registration of a trademark by the proprietor of an earlier trademark is an obstacle to cancellation proceedings brought against the later trademark.

VII. Partial Cancellation — A. Partial Cancellation

- Partial cancellation of a registration is possible, regardless of the grounds for cancellation.
- For single-class registrations and for multi-class registrations, it is possible to apply for cancellation of some of the goods either within the single class or within a given class, as appropriate, without applying for cancellation of all of the goods within the class.

VIII. Length of Proceedings — A. Length of Proceedings

- The average duration of cancellation proceedings is: Duration cannot be estimated, as it depends on many factors, such as the workload of the courts or the Registrar and the complexity of the case.
- After final arguments have been made and/or oral hearings have taken place, a decision will be rendered within the following time frame: The Supreme Court will render its judgment within one to two months, depending on the judge dealing with the case. As prescribed by the Civil Procedure Rules of Cyprus, a first instance court (i.e., a district court) must issue its judgment within six months from the date judgment was reserved by the judge. If the proceedings take place before the Registrar, the time frame for the issue of a decision/judgment will vary, depending on the workload of the Registrar.

IX. Costs and Fees to Initiate — A. Costs and Fees to Initiate

- The following costs and fees are associated with initiating cancellation proceedings: attorney fees; statutory or regulatory fees.
- No official fees are refundable if an application for cancellation is withdrawn, regardless of the grounds for cancellation.
- If an application for cancellation is based on multiple grounds, no additional official fees are due.

X. Documentation-- Notarization / Legalization Requirements — A. Documentation-- Notarization / Legalization Requirements

- No documents need be notarized or legalized in cancellation proceedings.
- The documentation that must be submitted and the procedures necessary to initiate cancellation proceedings are the same, regardless of the grounds for cancellation and are as follows: An application to the Registrar must be made on Form TM-No. 27 and shall be accompanied by a statement setting out fully the nature of the applicant's interest, the facts on which he bases his case, and the relief that he seeks. Where the application is made by a person who is not the registered proprietor of the trademark in question, it shall be accompanied by a copy of the application and a copy of the statement, and these copies will be transmitted forthwith by the Registrar to the registered proprietor. Proceedings before a district court are commenced by a writ of summons, as prescribed by the Civil Procedure Rules of Cyprus. The statement of claim must contain a statement of the case of the plaintiff, setting out in summary all the material facts relied upon and, specifically, the relief(s) sought. Evidence is submitted during the hearing of the action.

XI. Discovery — A. Interrogatories

- No party may request that any other party answer written questions, under oath ("Interrogatories").

XI. Discovery — B. Document Requests

- No party may request that any other party produce documents in response to written document requests ("Document Requests") in cancellation proceedings that take place before the Registrar. The Trade Marks Law (Cap. 268, as amended) and the Trade Marks Regulations do not provide for discovery or production of documents by a party in such proceedings. However, if cancellation proceedings are initiated before a district court, the Civil Procedure Rules of Cyprus provide that any party may apply

to the court for an order ordering any party to make discovery on oath of documents that are or have been in his possession or power, relating to any matter in question therein. Furthermore, the court may also order the inspection of documents mentioned in a party's pleadings, particulars, or affidavits.

XI. Discovery — C. Depositions

- No party may request that one or more witnesses for any other party appear in person to be cross-examined under oath ("Depositions").

XII. Burden of Proof — A. Burden of Proof

- The burden of proof can shift to the other party during the course of cancellation proceedings under the following circumstances: The burden of proof is on the applicant. However, the onus may be shifted in the course of the hearing. The respondent must prove the allegations on which he relies. Among other instances, a shift in the burden of proof would occur when the respondent argues that his trademark cannot be canceled for lack of distinctiveness on the ground that before the date of application for registration, and after the use made of it, it acquired distinctive character. Another instance where the burden of proof would be shifted is when the respondent relies on the existence of consent given by the applicant.

XIII. Written Arguments — A. Requirement/Deadline

- Written arguments are mandatory.
- The deadline for submitting written arguments is determined by scheduling order or ruling of the court, other judicial tribunal or administrative body and is: Written arguments are submitted by the parties upon completion of the evidence. The Registrar gives notice to the parties of a date when he will hear the arguments in the case. The applicable process, as developed by the Registrar's office, provides that all arguments are formulated in the form of a written address.

XIII. Written Arguments — B. Extensions to File

- Extensions of time are available to the applicant to file written arguments. The duration of the extension is: at the discretion of the Registrar, who will make such order upon such terms as he may direct.
- Extensions of time are available to the respondent to file written arguments. The duration of the extension is: at the Registrar's discretion, generally two to three months, or at the court's discretion.
- Extensions do not require the consent of the adverse party.
- Extensions require the approval of the court, other judicial tribunal or administrative body.
- No official fees are required to obtain extensions.

XIV. Oral Hearings — A. Oral Hearings

- Oral hearings are permitted in cancellation proceedings.
- The determination of whether oral hearings will take place is made by: the Registrar. Upon substantiated request by the parties and in case this is justified by the circumstances, the Registrar may allow for oral hearings to take place. In court proceedings, all hearing processes are conducted orally. If an appeal is filed against the judgment of the district court, the hearing process before the Supreme Court of Cyprus is conducted by filing written addresses. As a general rule, no further

evidence can be submitted. The advocates of the parties also have the right to address the Supreme Court orally for a limited period of time, elaborating on the content of their written addresses. Before the Supreme Court, the time of the hearing is at the Court's discretion.

XV. Evidence — A. To Establish Absolute Grounds

- The following types of evidence may be submitted to establish absolute grounds: any type of evidence that is relevant to the issue in question.
- Evidence must be submitted to: the Registrar or the district court.
- Evidence must be submitted by the following deadline: If before the Registrar, evidence must be submitted within two months from the receipt of the duplicate of the counterstatement made by the respondent; if before the Supreme Court, evidence must be submitted with the application or the written address submitted six weeks after the filing of the opposition.

XV. Evidence — B. To Establish Relative Grounds

- The following types of evidence may be submitted to establish relative grounds: any type of evidence that is relevant to the issue in question.
- Evidence must be submitted to: the Registrar or the district court.
- Evidence must be submitted by the following deadline: If before the Registrar, evidence must be submitted within two months from the receipt of the duplicate of the counterstatement made by the respondent; if before the Supreme Court, evidence must be submitted with the application or the written address submitted six weeks after the filing of the opposition.

XV. Evidence — C. To Establish Non-Use Grounds

- The following types of evidence may be submitted to establish non-use grounds: any type of evidence that is relevant to the issue in question.
- Evidence must be submitted to: the Registrar of Companies or the Registrar of the Supreme Court.
- Evidence must be submitted by the following deadline: If before the Registrar, evidence must be submitted within two months from the receipt of the duplicate of the counterstatement made by the respondent; if before the Supreme Court, evidence must be submitted with the application or the written address submitted six weeks after filing of the opposition.

XV. Evidence — E. Applicant's Proof of Use

- The applicant must submit proof of use of the mark on which the cancellation is based. The application for declaration of invalidity must be substantiated in relation to the existence, validity, and extent of protection of a previous trademark or right, together with relevant documents, as well as evidence regarding the applicant's right to apply for trademark invalidity, such as evidence of use of a widely known trademark in the territory of the Republic of Cyprus; evidence that the trademark enjoys reputation in the Republic of Cyprus or the European Union; particulars regarding the acquisition, continuous existence, and extent of protection of a designation of origin or a geographical indication; particulars regarding the acquisition, continuous existence, and extent of protection of an unregistered trademark or a distinctive characteristic used in transactions, etc.

XV. Evidence — F. Applicant's Extensions of Time

- Extensions of time available for the applicant's submission of evidence are the same, regardless of the grounds on which the cancellation proceedings are based. Extension is possible for: Rule 93 of the Trade Marks Rules provides that when the Registrar is satisfied that the circumstances are such as to justify an extension of time, he may extend the time upon such notice to other parties and proceedings thereon and upon such terms as he may direct, and the extension may be granted although the time has expired for doing the act or taking the proceedings.
- No official fees are payable to obtain an extension for submitting evidence.

XV. Evidence — G. Additional Evidence

- Additional evidence may be submitted at a later stage in the cancellation proceedings. The deadline for submitting additional evidence is: In cases where the Registrar deems that no evidence substantiating the application has been submitted, it may request the applicant to submit such evidence within two months.

XV. Evidence — H. Evidence in Reply/Deadline and Extensions

- Evidence in reply is mandatory.
- Evidence in reply must be submitted by the following deadline: within two months from the receipt of the notification of request for cancellation. The defendant has to file his defense before the district court within 14 days from the service of the statement of claim or from the last day of the time limited for his appearance.
- The following extensions of time for the respondent's submissions are available: at the Registrar's or court's discretion.
- No official fees are payable to obtain extensions.
- Petitioner can demand that respondent provide additional particulars relating to the respondent's proffered evidence, using the following procedure: If the cancellation process takes place before the Registrar, a request can be made in the counterstatement or at the hearing. If the cancellation process takes place before a district court, any party may request the provision of further and better particulars of any matter stated in any pleading, notice, or written proceedings. If the cancellation process takes place before the Supreme Court, the respondent cannot demand to provide additional particulars.

XV. Evidence — I. Proof of Respondent's Use

- The respondent may submit the following kinds of evidence to prove use: invoices; catalogues; evidence of turnover; packaging; labels; price lists; advertisements; written statements; market surveys; use of the mark on the Internet; maintenance of a website; use of the mark on a social media site.
- In assessing whether "use has been made," sufficient use is demonstrated by: Even minimal use can be sufficient to qualify as genuine, on condition that it is deemed to be justified, in the economic sector concerned, for the purpose of preserving or creating market share for the goods or services protected by the mark. The question of whether use is sufficient to preserve or create market share for those products or services depends on several factors and on a case-by-case assessment, which is for the district court or the Registrar to carry out. Factors that may be taken into consideration are, for example, the characteristics of the products or services, the frequency or regularity of the use of the mark, whether the mark is used for the purpose of marketing all the identical products or services of the proprietor or merely some of them, and evidence that the proprietor is able to provide.

- The following factors are considered when determining whether a mark has been sufficiently used: the nature of the goods or services at issue; market characteristics; the scale and frequency of use of the mark; export use.
- The respondent can demand that the petitioner provide additional particulars relating to the petitioner's proffered evidence, using the following procedure: This request may be made in the counter-Statement or at the hearing. Before the Supreme Court, the respondent cannot demand to provide additional particulars.

XV. Evidence — J. Consequences of Failure to Respond

- The consequences if a respondent fails to file a response or answer to a petition for cancellation are as follows: Upon request of the petitioner, the court, other judicial tribunal or administrative body may enter a default judgment in favor of the petitioner. If the cancellation process takes place before the Registrar, a request can be made in the counterstatement or at the hearing. If the cancellation process takes place before a district court, any party may request the provision of further and better particulars of any matter stated in any pleading, notice, or written proceedings. If the cancellation process takes place before the Supreme Court, the respondent cannot demand to provide additional particulars.

XVI. Defenses — A. Acquired Distinctiveness

- Acquired distinctiveness can be a valid defense in cancellation proceedings based on absolute grounds. The following criteria are used to establish acquired distinctiveness: Distinctiveness is acquired through use, where consumers identify the trademark in question with the associated products or services.

XVI. Defenses — B. Excusable Non-use

- Non-use can be excused, thereby avoiding cancellation, if: there are proper reasons for non-use. "Proper reasons for non-use" must be interpreted in accordance with Article 19(1) of the TRIPS Agreement, which uses the expression "valid reasons based on the existence of obstacles." "Circumstances arising independently of the will of the owner of the trademark which constitute an obstacle to the use of a trademark, such as import restrictions on or other governmental requirements for goods or services protected by the trademark, shall be recognized as valid reasons for non-use."

XVII. Monetary Awards/Attorney Fees — A. Basis/Amount of Award

- A cancellation decision may include a formal monetary award against the losing party, regardless of the grounds for cancellation. Section 68 of the Trade Marks Law (Cap. 268, as amended) provides that the Registrar shall have the power to award to any party such costs as he may consider reasonable, and to direct how and by what parties they are to be paid, and any such order may, by leave of a judge of a district court, be enforced in the same manner as a judgment or order of that court to the same effect. In view of the above, the Registrar has no power to make monetary awards (i.e., to award damages to a party). If the cancellation process is brought before a district court, the court may order the award of damages/monetary awards if the plaintiff sought such relief successfully.
- Monetary awards are based on: actual losses; statute/schedule/tariff.
- Monetary awards are not influenced by any particular circumstances of the case.

XVII. Monetary Awards/Attorney Fees — B. Attorney Fees

- The successful party is entitled to recover attorney fees in cancellation proceedings, regardless of the grounds for cancellation. Section 68 of the Trade Marks Law (Cap. 268, as amended) provides that the Registrar shall have the power to award to any party such costs as he may consider reasonable, and to direct how and by what parties they are to be paid, and any such order may, by leave of a judge of a district court, be enforced in the same manner as a judgment or order of that court to the same effect. In view of the above, the Registrar has no power to make monetary awards (i.e., to award damages to a party). If the cancellation process is brought before a district court, the court may order the award of damages/monetary awards if the plaintiff sought such relief successfully.
- The award of attorney fees in cancellation proceedings is:discretionary.

XVIII. Conclusion of Proceedings — A. Effect of Decision

- A decision in cancellation proceedings is valid against all third parties, regardless of the grounds on which the proceedings were brought.
- A decision ordering cancellation of a mark takes effect: from the date of delivery of the judgment.

XVIII. Conclusion of Proceedings — B. Withdrawal or Termination of Proceeding/Costs

- Cancellation proceedings can be terminated by withdrawing the cancellation application, regardless of the grounds for cancellation. No leave is required to be obtained by the Registrar. However, costs may be ordered against the applicant. An action before a district court can be withdrawn/discontinued by the plaintiff. In such instances, withdrawal/discontinuance requires leave of the court, and the court may order costs against the plaintiff.
- Withdrawal of a cancellation application based on any grounds requires the approval of the court, other judicial tribunal or administrative body, regardless of the grounds for cancellation. No leave of the Registrar is required to be obtained. However, costs may be ordered against the applicant. An action before a district court can be withdrawn/discontinued by the plaintiff. In such instances, withdrawal/discontinuance requires leave of the court, and the court may order costs against the plaintiff.
- Withdrawal of a cancellation application does not require the approval of the other party to the proceedings; termination is automatic regardless of the grounds for cancellation.
- When cancellation applications are withdrawn, the cost of the proceedings is borne by: No leave of the Registrar is required to be obtained. However, costs may be ordered against the applicant. An action before a district court can be withdrawn/discontinued by the plaintiff. In such instances, withdrawal/discontinuance requires leave of the court, and the court may order costs against the plaintiff.

XIX. Appeals — A. Availability/Deadline

- A cancellation decision may be appealed.
- Appeals of cancellation decisions must be brought before the following deadline: The recourse against the Registrar's decision must be instituted within 75 days of the notification of the decision. Appeal against the court's judgment must be submitted within 42 days from the delivery of judgment.

XIX. Appeals — B. Forum

- Regardless of the grounds for cancellation, appeals are heard by the following court or other judicial tribunal: (a) the Supreme Court of Cyprus (Appellate Division), for appeals against district court judgments; (b) the Supreme Court of Cyprus (Administrative Division), for recourses against the Registrar's decisions.

XIX. Appeals — C. New Evidence

- New evidence may not be submitted on appeal.

XIX. Appeals — D. Representation/Cost/Awards

- The approximate cost range of official fees (in local currency) to file an appeal is: For appeals against district court judgments, the official fees depend on the scale of the action filed before the district court. For recourses against a decision of the Registrar, the official fees are approximately EUR 60.
- Specialist counsel is not required, but is recommended, for an appeal of a cancellation decision.
- An appeal decision can include a monetary award against the losing party even if the earlier decision did not include a monetary award. The approximate award, in local currency, would be: It varies. The appeal court will examine the correctness of the district court judgment based on the special circumstances of the case, provided that the appellant sought damages through his action. A successful recourse against a decision of the Registrar will cause only the annulment of the administrative decision. No monetary awards/damages are awarded.

XIX. Appeals — E. Scope

- An appeal is limited to points of law. The Supreme Court has consistently shown that it will not intervene or quash any Registrar's decisions as long as the Registrar has taken into account all the relevant facts and his decision was not based on a false evaluation of the law, or taken in excess and/or in abuse of his authority.

XIX. Appeals — F. Further Appeals/Alternatives to Appeal

- The appeal decision is final.
- There is no alternative procedure to an appeal.

XX. Consequences — A. Status of Mark After Cancellation

- The terminology relating to cancellation proceedings can vary from jurisdiction to jurisdiction. Within jurisdictions, the grounds for bringing a cancellation proceeding can ultimately influence the legal consequences of the cancellation. In this jurisdiction, regardless of the grounds on which the cancellation proceedings were brought, if an applicant is successful in obtaining cancellation, the legal consequence is that the mark is considered as if it were never registered.

XX. Consequences — B. Licenses, Assignments, Other Transactions

- The consequences for past assignments if a mark is cancelled are: Past assignments are cancelled.
- The consequences for past licenses if a mark is cancelled are: Past licenses are cancelled.
- The consequences for past contracts if a mark is cancelled are: Past contracts are cancelled.

XXI. Notification to TM Office — A. Notification to TM Office

- Following a decision to cancel a mark, the Trademark Office must be formally notified of the cancellation, regardless of the grounds on which the proceedings were brought. The deadline to make the notification is: forthwith.
- The consequences of failing to meet the deadline to notify the Trademark Office are: not specified by the law.

XXII. Refiling of Identical Mark — A. Refiling of Identical Mark

- After a cancellation, depending upon the grounds on which the proceeding was based, an application to register the mark may be refiled: by either of the parties to the action; by a third party.
- There are no time limits for refiling following the cancellation of a mark.

XXIII. Collective Marks — A. Collective Marks

- Collective marks may be registered in this jurisdiction. Collective marks are defined as: a mark distinguishing the goods or services of members of an association, which is the proprietor of the mark, from those of other undertakings.
- There are certain unique provisions in the law of this jurisdiction in relation to the cancellation of collective marks on absolute, relative, non-use or other grounds, as follows: It is possible to register a collective trademark that consists of signs or indications that may be used in the industry to denote the geographical origin of the goods or services. A collective trademark cannot be registered, or if it is registered, it can be declared void if the public is likely to be misled as to the character or meaning of the said trademark, particularly if this trademark is likely to be conceived as something different from the collective mark. A collective trademark cannot be registered, or if it is registered, it may be declared void unless the regulations that govern the use of the trademark (a) appoint the persons who are authorized to use the mark, the conditions they must satisfy to be members of the association and, if applicable, the conditions for use of the trademark, including any sanctions against illegal use; (b) are not opposed to public order and public morals. The Registrar may, upon application, in the prescribed manner, by any person aggrieved, cancel a collective trademark from the register if: (a) the proprietor could not abide, or ensure the obedience of, the regulations that govern the use of the collective trademark; (b) the regulations were amended so that: (i) they no longer satisfy the following requirements: the regulations that govern the use of the trademark must appoint the persons who are authorized to use the mark, the conditions they must satisfy to be members of the association and, if applicable, the conditions for use of the trademark, including any sanctions against illegal use; (ii) they are opposed to public order or public morals.

XXIV. Certification Marks — A. Certification Marks

- Certification marks may be registered in this jurisdiction. Certification marks are defined as: a trademark that denotes that the goods or services used in relation to it are certified by the proprietor of the trademark as to the quality, precision, or other characteristics, including origins, manner of manufacture and, for services, the manner in which they are carried out.
- There are certain unique provisions in the law of this jurisdiction in relation to the cancellation of certification marks on absolute, relative, non-use or other grounds, as follows: It is possible to register a certification trademark that consists of signs or indications that may be used in the industry to denote the geographical origin of the

goods or services. A certification trademark cannot be registered, or if it is registered it can be declared void, if the public is likely to be misled as to the character or meaning of the said trademark, particularly if this trademark is likely to be perceived as something different from the certification mark. The Registrar may, upon application, in the prescribed manner, by any person aggrieved, cancel the certification trademark from the register if: (a) the proprietor is no longer suitable, in the event of any goods or services in relation to which the certification trademark has been registered, to certify those goods or services; (b) the proprietor has failed to adhere to a clause of the regulations that were submitted; (c) it is no longer in the public benefit that the regulations be amended, if the trademark remains registered; or (d) it is necessary for the public benefit that the regulations be amended if the trademark remains registered.

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